

		demonstrates a triable issue of fact as to this issue of duty. Therefore, the motion is denied.
13	2023-01343055 <i>Surdyk's Decorating vs. McAllister</i>	Motion – Other CONTINUED
14	2025-01487775 <i>Yun vs. Lee</i>	Order to Show Cause re: Preliminary Injunction The Order to Show Cause Re: Preliminary Injunction is CONTINUED to _____. Plaintiff is ORDERED to properly serve Defendants with the summons and complaint and the order to show cause. “A party requesting a preliminary injunction may give notice of the request to the opposing or responding party either by serving a noticed motion under Code of Civil Procedure section 1005 or by obtaining and serving an order to show cause (OSC). An OSC must be used when a temporary restraining order (TRO) is sought, or if the party against whom the preliminary injunction is sought has not appeared in the action. If the responding party has not appeared, the OSC must be served in the same manner as a summons and complaint.” (Cal. Rules of Court, rule 3.1150(a).) Plaintiff has not properly served Defendants with the Complaint. The proofs of service of summons show Plaintiff’s process server served the summons and complaint on a receptionist at Chung & Reynolds Law Firm. “A summons may be served on a person not otherwise specified in this article by delivering a copy of the summons and of the complaint to such person or to a person authorized by him to receive service of process.” (Code Civ. Proc., § 416.90.) The plaintiff bears the burden of proof to show the person served was authorized to by the defendant to accept service of process. (<i>Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1163.) A personal attorney or an attorney representing the party in another lawsuit is not presumed to be an authorized person. (<i>Zirbes v. Stratton</i> (1986) 187 Cal.App.3d 1407, 1416-1417.) Plaintiff has presented no evidence Chung & Reynolds was authorized to accept service for this lawsuit by either Defendant. Thus, the Court lacks jurisdiction to enter an injunction against Defendants.
15	2024-01439438 <i>Chou vs. Mercedes-Benz USA, LLC</i>	Demurrer to Amended Complaint (Continued from 11/6) Defendant Mercedes-Benz USA, LLC’s Demurrer is CONTINUED to _____. Plaintiff may file an additional opposition no later than 9 court days before the new hearing date and Defendant may file an additional reply no later than 5 court days before. Defendant’s request for judicial notice is granted. (See <i>Ascherman v. General Reinsurance Corp</i> (1986) 183 Cal.App.3d 307, 310-311 [courts

		may take judicial notice of the contracts upon which a plaintiff bases their complaint and may consider the contracts on a demurrer].) The hearing is continued to allow Plaintiff an opportunity to respond.
16	2017-00946231 Farah vs. Van Sickle	Motion – Other The Motion Pursuant to Code of Civil Procedure Section 664.6 to Have the Court Consider Extrinsic Evidence of Defendants’ Historical use of the Easements, and Determine Easement Terms Omitted in Defendants’ Second Amended Complaint, Motion for Summary Judgment, and the Parties’ Settlement Agreement and for an Award of Attorney’s Fees filed by Plaintiff/Cross-Defendant, Michael Farah, individually and as trustee of the Eric Wyser Charitable Trust is DENIED. The Court declines to rule on the objections filed by Defendants/Cross-Complainants, Rod Van Sickle and Kim Cashman (ROA 391) as immaterial to the Court’s ruling but the objections are preserved for purposes of appeal. (See <i>Reid v. Google, Inc.</i> (2010) 50 Cal.4th 512, 526 [“the trial court’s failure to rule expressly on any of Google’s evidentiary objections did not waive them on appeal”]; see Code Civ. Proc., § 437c(q).) Legal Standard As with any contract, the settlement agreement requires mutual consent: “The existence of mutual consent is determined by objective rather than subjective criteria, the test being what the outward manifestations of consent would lead a reasonable person to believe.” (<i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 811, internal quotes omitted.) Moreover, to be binding, the agreement must be <i>sufficiently definite</i> to enable courts to give it an exact meaning. If an essential element is reserved for future agreement, it is not definite enough. (See <i>id.</i> at pp. 810-812 [incomplete terms in “deal point memorandum”].) Disputes regarding the terms of the settlement (or other disputed facts) may be adjudicated on a CCP § 664.6 motion, on the basis of declarations or other evidence. (<i>Malouf Bros. v. Dixon</i> (1991) 230 Cal.App.3d 280, 284; see <i>Machado v. Myers</i> (2019) 39 Cal.App.5th 779, 795-796 [court may resolve reasonable disputes over terms of settlement agreement but may not modify terms from what was agreed to by parties].) In ruling on a motion under CCP § 664.6, the trial judge may receive oral testimony, or may determine the motion upon declarations alone. (<i>Corkland v. Boscoe</i> (1984) 156 Cal.App.3d 989, 994.) For example, where the settlement agreement is <i>ambiguous</i>, the court is required to consider extrinsic evidence of the parties’ intent. (<i>Steller v. Sears, Roebuck & Co.</i> (2010) 189 Cal.App.4th 175, 183.) The CCP § 664.6 “authorizes the court to entertain challenges to the actual terms of the stipulation, that is, whether there actually was a